

Civil Procedure

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Class Meetings:

T | Th 2:45-4:45 PM

Room 105

Blackboard:

<https://tinyurl.com/4mu6u5v6>

Office Hours:

W 12:30-3:30 PM

Room 427

or by appointment via

smith-morgan@campbell.edu

I. OVERVIEW

Civil Procedure is really the combination of two separate but related courses. *First*, civil procedure teaches the fundamentals of the adjudicative process in the United States. *Second*, the course is also about the organization of the American judicial system and how the federal-state structure shapes civil litigation.

This course differs from many that you will take in law school. Substantively, of course, these are important topics. But the questions addressed by the law of civil procedure are not ones to which you are likely to have pre-existing intuitions, in the same way you might about a contractual or criminal issue. Maybe you came to law school with a strong opinion about Fed. R. Civ. P. 20's approach to permissive joinder. But that feels unlikely.¹

This makes civil procedure a critical first-year course. On the one hand, the newness of the issues to be addressed means you will be thrown into the deep end of lawyering. On the other hand, questions of justice, fairness, and efficiency—among the intuitions you likely lean on to approach criminal or contractual questions—crop up here, too.

Also unlike other first-year courses, much of the foundational “law” in civil procedure is embodied in *literal* rules—the Federal Rules of Civil Procedure and state equivalents. So, this course also serves as an introduction to important legal concepts like statutory interpretation, legislative intent, and the ways in which rules can be both limiting and liberating.

Together, these dynamics also introduce a push-and-pull between recourse to foundational normative principles and adherence to a rule's text or intent. There is a strategy to knowing *when* to make *what* argument and developing that skill is also important.

In short, civil procedure is an important course both substantively and for the cognitive work it can do in teaching you to *think like a lawyer*. Welcome!

¹ To be clear: *I* do not have a strong opinion about permissive joinder, although I'm sure I could work myself up to one if necessary.

II. PRIMARY COURSE OBJECTIVES

Substantive:

- Understand the general progression of civil litigation in federal court.
- Develop a working familiarity with the most important of the Federal Rules of Civil Procedure.
- Understand and apply the doctrines governing personal (general and specific) and subject-matter (diversity, federal, supplemental, and removal) jurisdiction in federal courts.
- Understand and apply the *Erie* doctrine and choice-of-law principles.
- Understand and apply the doctrines governing issue and claim preclusion.

Skills:

- Develop comfort in approaching legal questions using tools of legal analysis.
- Develop ability to synthesize doctrine from critical analysis of primary sources of law.
- Analyze and apply statutory text / rules as well as court-made doctrines.
- Identify normative values and interests served by legal rules and argue from those interests—without undue reliance on them.

III. MATERIALS

Required Materials: The casebook for this course is **CIVIL PROCEDURE: A COURSEBOOK**, by Glannon, Perlman, Raven-Hansen, and Reynolds (5th Ed. 2025). Page numbers in the **Schedule of Assignments** will refer to the 5th edition. You may purchase an earlier edition but, in so doing, assume the risk of any discrepancy, and ultimately are responsible for the material covered in the 5th edition. Because this class features an open-book, open-note, in-class final exam using exam software that locks your laptop from accessing other programs, *see infra*, you will probably want to acquire a physical textbook.

In addition to the casebook, you will need a copy of the Federal Rules of Civil Procedure (“Fed. R. Civ. P.” or, less formally, “FRCP”). They are freely available online;² there are also various bound and published copies, which you are welcome to purchase at your discretion. It is your responsibility to ensure that whatever version of the Rules you are referencing is up to date.

Other required materials are listed in the **Schedule of Assignments** and will be circulated via Blackboard. I will occasionally supplement the reading by circulating or directing you to additional materials and will always endeavor to be clear if the additional reading is optional or required.

² E.g., <https://www.law.cornell.edu/rules/frcp>.

Supplementary Materials: Commonly recommended “hornbooks” or study supplements include:

- RICHARD D. FREER, *CIVIL PROCEDURE* (5th ed. 2022) (ISBN: 9781543839005) (Professor Sawchak’s review: “Concise and understandable hornbook. On reserve in the library. This paperback hornbook is worth buying.”).
- JOSEPH W. GLANNON, *CIVIL PROCEDURE: EXAMPLES AND EXPLANATIONS* (9th ed. 2023) (ISBN: 9781543839333) (“Beloved study aid with many hypotheticals that will test and advance your understanding.”).
- Carolina Academic Press, *Click & Learn: Civil Procedure*, (<https://cap-press.com/clcp/purchase.php>) (“[A]n online interactive tool that offers a wealth of practice problems”)

We are likely to encounter terms with which you are unfamiliar. You should not simply skip over those words. Look them up. You may want to do so with a physical or online copy of a law dictionary—BLACK’S LAW DICTIONARY is the standard. You should have access to it via Westlaw, or you can use a library copy—no need to purchase, in my opinion.

Some Advice on Materials:

1. One of the key skills you will learn over the course of your first year is *legal reading*—determining what part of a piece of assigned text (*e.g.*, a case) is relevant, why it was assigned, what you are likely to need to know about it in the future, and how it fits in with other knowledge you’ve acquired. This skill is at the core of legal practice, and you are not yet likely to be masterful. But—at the risk of contradicting Allen Iverson³—sometimes it really is about *practice*. In the meantime, remember: highlighting everything means you’ve highlighted nothing.

A corollary of this point is: you should not expect to read a 20-page portion of your casebook in the same amount of time it would take you to read a 20-page portion of your favorite young adult, dystopian, enemies-to-lovers fiction novella. Expect to spend some time reading for this course. The American Bar Association’s Law School Standard 310 states that one credit hour should correspond to one hour of class time *and* two hours of out-of-class time per week. This course is 4 credit hours. My expectation is that this eight hours of out-of-class time per week will likely constitute an average over the course of the semester, with you needing to spend more time earlier in the semester and less time later as you become more masterful and confident.

³ See <https://youtu.be/eGDBR2L5kzI>

2. Some of the material you will be assigned does not represent the current state of the law, but rather is assigned because I think the historical development of the law in the area is either interesting (unlikely) or elucidating (more likely). You should approach historical materials with this understanding of my pedagogical intent in mind—you will not be tested on “what was the rule for X in 1894.”
3. I’m likely to ask folks I call on in class (for our class policy related to cold calls, *see infra*) to discuss “the facts of the case.” I do so to establish a common baseline for the class discussion. But: I do not want you to mistake this practice as standing for the principle that what we *really* care about are the facts of the case. In other words: You will not be tested on “what did the plaintiff allege happened in *Doe v. Smith*?” While some areas of civil procedure—like personal jurisdiction—may be very fact-specific, many civil procedure cases do not “turn” on the facts, unlike a typical tort, criminal law, or property case. Generally, your goal when reading should be to get a general sense of what actions or circumstances gave rise to the lawsuit, and to get to the legal analysis as quickly as possible and spend most of your time there. Once you’ve got a good sense of the legal doctrine, return to the facts to see which ones wound up being legally relevant.
4. With reference to any other material, please keep in mind that *I* am the one who will be grading your performance—not Richard Freer, Joseph Glannon, or your friends in other sections of Civil Procedure. Folks sometimes have different interpretations of what happened in different cases, or varying formulations of legal doctrine. You are, of course, welcome (encouraged!) to draw your own conclusions, and if you disagree substantively with something I say, we can discuss the disagreement. Ultimately, however, you will be assessed by reference to what was taught in this class, and I cannot be held responsible for any detrimental reliance on outside materials or persons.
5. Finally, a note on pacing. As suggested by the introduction to this syllabus, there is a significant amount of material to cover in this course, and it will not be as intuitive as some of your other first year courses. We will be thorough—but also, by necessity, brisk. It is incumbent that you keep up with the reading; it will be extraordinarily difficult to catch up if you fall behind. I promise that my reading schedule and proposed scope of coverage does not vary significantly from the norm in first year Civil Procedure courses. Sometimes, civil procedure is taught as a year-long course. We’re fitting it into a semester.

IV. CLASS PARTICIPATION & POLICIES

Attendance: This course follows the Campbell Law School Academic Standards and Regulations’ default rule for classroom attendance: “no student may miss more than 20% of the class meeting

sessions regardless of the reason for the absences.”⁴ If you miss more than 20% of class meeting sessions (*i.e.*, more than five classes), you will not be permitted to sit for the final exam.

One important implication of that rule is that, although **a heads-up that you will be absent is the professional thing to do—and therefore expected**—I do not need to know *why* you are absent from class. I do not want to be an arbiter of “excused” *versus* “unexcused” absences, and so there are no such distinctions. If you believe that extenuating circumstances will require your absence from more than 20% of class meeting sessions, you should speak in the first instance with Dean Hinds-Glick’s office.

Technology: I am not going to ban the use of laptops, tablets, etc. in the classroom. Some of you may require them for accessibility reasons, and I think that implementing a flat ban with the possibility of exceptions unnecessarily “outs” people who need those accommodations. That said, I will present you with my (informed) advice, which is also confirmed by the weight of the empirical evidence: **Taking notes on your laptop is MUCH worse for comprehension and memory than taking notes by hand.**⁵ So, to the extent you are able to take notes by hand, I ***strongly*** recommend doing so. Later inputting hand-written notes into a running computer file is also an excellent study and review method, one I used successfully in law school.⁶

I ask that if you do use laptops in class, do not do anything on them that may distract your peers. If it’s obvious to me that you are—and it will be—I reserve the right to ask laptop users to move to the back of the room. If the abuse of this privilege becomes an ongoing problem, I reserve the right to amend the laptop policy to generally prohibit them. Obviously, please make sure cell phones or anything else that makes noise is off or silenced prior to class. Finally, absent an accommodation, you may not make any audio or video recording of the class.

⁴ <https://law.campbell.edu/learn/academic-program/grading-information-and-academic-standards/>

⁵ See, e.g., Horbury & Edmonds, *Taking class notes by hand compared to typing: effects on children’s recall and understanding*, 35 J. RES. CHILDHOOD EDUC. 55 (2021) (“[C]hildren who handwrote notes had greater conceptually understanding one week after viewing their lesson, compared to those who typed notes.”); Aragon-Mendizabal et al., *A Comparative Study of Handwriting and Computer Typing in Note-taking by University Students*, 24 COMUNICAR 101 (2016) (“[H]andwriting enhanced students’ grades when performing memory tasks.”); Mueller & Oppenheimer, *The Pen Is Mightier Than The Keyboard: Advantages of Longhand Over Laptop Note Taking*, 25 PSYCH. SCI. 1159 (2014) (“In three studies, we found that students who took notes on laptops performed worse on conceptual questions than students who took notes longhand. . . [L]aptop note takers’ tendency to transcribe lectures verbatim rather than processing information and reframing it in their own words is detrimental to learning.”). *But cf.* Artz et al., *Taking notes in the Digital Age: Evidence from Classroom Random Control Trials*, 51 J. ECON. EDUC. 103 (2020) (suggesting that “the source of the negative outcomes may originate with the student,” in that “students with lower impulse control may be more likely to choose to take notes on the computer” and wind up distracted).

⁶ See Flanigan et al., *Computer versus longhand note taking: Influence of revision* 51 INSTRUCTIONAL SCI. 251 (2023) (finding that longhand note-takers “added three times as many complete ideas to their notes during revision” and that such revisions “predicted achievement”).

Participation: Our primary method of classroom participation will come in the form of cold-calling. To select students for cold calls, I use a program created by Professor Steve Sachs, which utilizes a weighted “lottery ticket” system—*i.e.*, if you have previously been called on X times, you are much less likely to be called on than someone who has been called on fewer than X times, but there is no guarantee that you will not be called on multiple days in a row.⁷

If for any reason you are (a) unable to attend class or (b) are able to attend but unprepared to participate thoughtfully: send me an email before class, leave me a note on the podium, or simply tell me before class starts. I do not need (or want) to know a reason; you can just say “please don’t call on me today.” Think of it as calling in sick for work. I keep track of passes and consider overuse of them when awarding final grades. *See infra.*

In addition to cold-calling, I will occasionally ask for volunteers and, of course, welcome questions. I ask that you **avoid “volunteering” to help a classmate with a cold call**. It can be an extraordinarily demoralizing experience to see hands pop up while struggling with a question. Many times, a simple rephrase on my part will unlock the answer, and if a student needs assistance from “co-counsel,” I will bring someone into the discussion.

Courtesy, Respect, and Inclusion: Law school is a professional environment. I will endeavor to treat you like adults treat one another in a professional environment, and expect the same from you towards me and your peers. Additionally, as a lawyer, it is necessary that you develop the ability to engage in rigorous discussion, argumentation, and even criticism while remaining civil and respectful. I hope we can collectively commit to some basic principles:

- (1) Grace and understanding towards one another as we grapple imperfectly with occasionally challenging and controversial topics;
- (2) Constant critical self-examination of our own biases, assumptions, and beliefs about the law and the world;
- (3) Epistemological modesty; and
- (4) Other than as occasionally necessary on my part for instructive reasons, avoidance of sophistry and pedantry.

Collectively, these principles mean we should speak and listen respectfully and honestly; reserve the right to change our own minds and extend the same courtesy to others; and provide allowances for what we perceive as mistakes, both substantive and rhetorical.

Finally, if you, for any reason, prefer to be referred to in a manner other than what is listed in the official system, please communicate that to me as you see fit.

⁷ Those interested in more information can visit Professor Sachs’s website, where a downloadable copy of the program is available. *See* <https://stevesachs.com/code/>.

Artificial Intelligence: As discussed *infra*, the use of large language models (LLMs) or any other AI program is strictly prohibited on the final exam and any other assessments. Apart from that, you can make use of these tools as you see fit. However, a word of caution: just as purchasing and relying exclusively on commercial case briefs is unlikely to serve you well, outsourcing your thinking and analysis to an LLM is only going to impede your intellectual development in a way that is definitively *not* going to help you on the final exam or in your career:

You are currently undertaking the education you need to become proficient lawyers. That process is slow and difficult, because being a proficient lawyer—a professional whom people can trust to defend and assert their rights in a society governed by law—is not an easy thing to do. . . . Your legal education consists in part in developing the knowledge and skills that allow you to perform these tasks—to identify legal authorities and to understand what they mean and how they can be used to resolve real disputes among real people, or between people and their government, through the institutions of the law. If you are outsourcing that work to a technological tool *now*, what value are you preparing yourself to provide to anyone *later*? If someone in the future tries to take away your clients’ rights, their property, their liberty, or their life, based on a lie, how would you ever be in a position to prevent it? Why would anybody ever seek your help, let alone be willing to pay you for it?

This is not to say that in the hands of a legal professional . . . a technology that speeds up some of the more routine tasks of legal work would lack value. It is merely to say that *you are not there yet*. You are in law school to start building the skills and knowledge that will put you in a position to know which tasks can be delegated and which you need to do yourself: to be able to recognize when your tools are helping you and when they are getting in your way, and to be able to detect when they are lying to you. There is no short cut to that kind of professional expertise; it is something that you build with time and effort. That is why we call the work that professionals do “practice”—it is a set of specialized behaviors that you get better at by *doing* them. To be in a position to know whether the output of a generative AI tool is right or wrong, helpful or harmful, you first need to have the knowledge and skills that would have enabled you to generate such an output yourself. You cannot verify the quality, utility, or truthfulness of work that you never learned how to perform in the first place. And if you aren’t learning how to do that work now, when only your grades are at stake, you are not going to be able to do that work later in your career, when real people will be depending on you to defend their rights.⁸

⁸ Jeremy Sheff, *Generative AI in the Law School Classroom*, JeremySheff.com (June 2, 2025), <https://jeremysheff.com/2025/06/02/generative-ai-in-the-law-school-classroom/>.

Seating: I will distribute a seating chart for you to fill in during our first class session. Please use your designated seat thereafter. If a problem arises, let me know. The seating chart will be used for tracking attendance and participation, so failure to use your assigned seat will present risks to your grade.

Make-up Classes: We do not have any “spare time” built into the semester; there is simply too much to cover. In the event of a snow day or other reason for the physical closure of the law school on a day a class is scheduled, our first recourse will be to hold class via Zoom at the regular time. If that is not possible, and if for any reason I am not able to attend a regular class session, we will schedule a make-up class.

Disability Services: Students in the School of Law with documented disabilities may request reasonable accommodation(s) by contacting Assistant Director Meredith Chilausky in the Office of Academic Support & Bar Success by email at chilausky@campbell.edu or by phone at (919) 865-4685. A health condition may rise to the level of a disability if it substantially limits one or more major life functions, one of which is learning. A disability may be temporary or ongoing. Medical documentation is required to support all requests.

Basic Needs & Mental Health: If you or a fellow student is experiencing food, housing, or other insecurity and believe it will affect your/their performance, please do not hesitate to contact me or the Dean’s office. If you are a parent and need to bring a child to class so as to not miss class yourself, you may—please reach out to me to let me know.

The Campus Pantry is open to students and staff experiencing food insecurity, offering a space for shoppers to choose their food and personal hygiene items. With the main location at the Wallace Center and smaller satellite locations, there are multiple options to shop. Satellite Pantries are located in Counseling Services, Wiggins Memorial Library, Bob Barker Hall and Pat Barker Hall (for residents). For more information on location hours and frequently asked questions please visit the Campus Pantry webpage.⁹ For assistance and questions, contact Rev. Morgan Pajak at pajak@campbell.edu or 910-814-4769.

Additionally, law school, much like the practice of law, can be a significant stressor. Almost every practicing lawyer I know regularly attends therapy, and I have never known anyone to regret it. Mental health requires preventative and maintenance healthcare just like physical health. I urge you to start this practice now if you have not already.

Title IX: Campbell University is committed to equality of educational opportunity. Campbell University does not permit discrimination or harassment in our programs and activities on the basis of race, color, sex, sexual orientation, gender identity or expression, age, religion, ethnicity or national origin, disability, genetic information, protected veteran status, military status and any

⁹ <https://www.campbell.edu/life/spiritual-life/community-engagement/campus-pantry/>

other characteristic protected by law, except where exemption is appropriate and authorized by law. Students who believe they have been subjected to discrimination or harassment in violation of Title IX should report these concerns immediately to Associate Dean Hinds-Glick at the law school or the Title IX coordinator on main campus. Title IX prohibits retaliation by any student and/or employee against anyone who reports an alleged Title IX violation. If students, staff, or faculty members believe someone they know has experienced harassment or discrimination in violation of Title IX, they should promptly report incidents to Associate Dean Hinds-Glick at the law school or the Title IX coordinator on main campus via the Campbell website.

Safety and Security: The health and safety of our community is of utmost importance. Please familiarize yourself with your classroom and building surroundings, emergency information posters, and make sure you have registered your cell phone number with CU Notify for timely warnings and emergency alerts. For more information visit the Emergency Preparedness website.¹⁰

V. GRADING

Final Exam: Eighty-five percent (85%) of your grade in this class will be determined by your performance on an **in-class final exam**. More details about the exam will be forthcoming later in the semester, but you can expect any essay questions on it to have a word limit. You can also expect that the bulk of the points available will come from one or more traditional “issue spotter” essay questions. I will post past exams and practice questions at an appropriate time in the semester.

The exam will be open-book and open-note. You are welcome to bring *any* printed materials into the exam with you, including textbooks, supplements, and outlines (your own and/or those of others). Unfortunately, the material **does have to be printed**. You will not be able to exit the exam software to access material stored electronically on your laptop, and your other devices will need to be set to airplane mode. **You are not permitted to access any *new* information once you have received the exam.** Your work on the exam must be solely your own. You cannot use an LLM or other AI for help.

You may not share answers or discuss the exam with others until the overall exam period at Campbell has ended, as others may be taking the exam at different times. Additionally, I will not be able to discuss the exam until after you have received your grades. If you have questions while taking the exam, they must first go through the Dean’s office, who will contact me if necessary.

If you require an accommodation, that is, again, an issue in the first instance for Ms. Chilausky. In order to maintain anonymity, you should *not* discuss exam accommodations with me.

¹⁰ <https://www.campbell.edu/campus-safety/emergency-preparedness/>

Finally, please note that there will be ample opportunities for you to practice answering exam-style questions, *see immediately infra*, and we will go through some answers together so you have a sense of what to expect and what I am looking for.

Additional Assessments: Fifteen percent (15%) of your grade in this class will be determined by your performance on three (3) take-home additional assessments given throughout the course of the semester. Their primary purpose is to expose you to the types of questions and analysis you will be expected to undertake in the final, and we will use class time to review model answers following each assessment.

The assessments will be evaluated primarily on the basis of good-faith effort, with additional detail to be provided when relevant. The bottom line is that it is possible to receive a relatively strong score on the assessments while performing work that, substantively, will earn a relatively poor score on the final exam. In this sense, if you make a real effort, the additional assessments should act as a measure of “grade insurance” that essentially just reduces the importance of the final exam.

Participation: I may, at my discretion, assign up to two bonus points for participation over the course of the semester. This reflects all aspects of course participation—office hours attendance, scholar session attendance, in-class participation, and engagement on Blackboard’s discussion forum.

Curve: Campbell has a mandatory median grade of 81-83 for required courses. Because Campbell’s grades are deemed to fall within certain “bands” that have particular meaning beyond the number grade, after curving your raw grades I may adjust them (typically no more than 2 points upward) to reflect a holistic review of your performance in the class.

VI. COMMUNICATION

I can be reached at my email (smith-morgan@campbell.edu). I will generally communicate to you via email or Blackboard. It goes without saying (but I will say it anyway) that we are all adults in a professional environment and our use of these communication mediums should reflect that. Additionally, as adults in a professional environment, it is critical that you regularly check your email.

VII. COURSE EVALUATIONS & FEEDBACK

Per Campbell Law policy, we will dedicate some class time near the end of the semester to allow you to fill out course and instructor evaluations. These evaluations are anonymous, and you should not discuss them with me.

Additionally, you should feel comfortable approaching me with constructive feedback. I may not always be able to make requested changes, but I can do my best to explain why I do what I do and why the change may not be possible.

VIII. AMENDMENTS

The syllabus might need to change based on the needs of the class. I reserve the right to make any changes to the syllabus, including to course policies, important dates, or reading schedules. I will announce any changes as early as possible and distribute revised syllabi as necessary.